

Deposition of Draven Pike — role and authority

Q. What was your Blue Cedar role in March 2025?

A. Vice president for operations. I was accountable for the operations portion of the reduction in force and made the final manager-selection decision.

Q. Who supplied the financial target?

A. Sable Finch. Human resources, led by Mira Solis, maintained the workbook. Naomi Voss supplied manager information.

Q. Could someone else overrule your manager selection?

A. Finance could reject the arithmetic and human resources could flag a compliance concern, but I approved the final employee choice.

Savings target and scenario design

Q. What target did you receive?

A. \$612,000 annualized payroll savings across the covered group.

Q. Did selecting Benton alone achieve that amount?

A. No. Her cost was one component with support-role and vacancy changes. Scenario B-7 projected \$618,400.

Q. Were there qualifying scenarios that retained her?

A. Yes, when paired with an archive-hosting expense consolidation and a different manager. I rejected them because I believed they posed greater continuity, travel, or automation risk.

Q. So arithmetic did not compel Benton's selection?

A. Not by itself. I exercised operating judgment among scenarios that could reach the target.

EEOC notice routing and open event

Q. Did Solis forward you Benton's charge packet on February 10?

A. The log shows that she did. I replied "Received" on February 11 and agreed to preserve files.

Q. Did you open the attachment?

A. The system recorded an open event. I remember reviewing the cover message and preservation request. I do not specifically remember reading every paragraph of the charge that morning.

Q. You accepted a meeting titled "EEOC / staffing response"?

A. Yes. We discussed preservation and who would supply operations records.

Q. Did the packet identify Benton?

A. Yes, her name appeared in the subject and cover information.

Knowledge of protected activity

Q. Before March 24, did you know Benton had complained about sex-based assignments?

A. I knew she had raised an assignment issue and that an EEOC matter existed. I did not focus on the legal characterization when choosing the RIF scenario.

Q. Your February 12 action note records you asking when she made the internal complaint?

A. That is what it says. I likely asked to understand the preservation period.

Q. Are you denying awareness or denying retaliatory use?

A. I deny using it. I cannot deny that I knew there was a complaint and charge by then.

Q. Did you disclose that knowledge in the employer position statement?

A. The statement distinguished general awareness from substantive review. I agree that distinction is narrower than saying I knew nothing.

RIF criteria and baseline scores

Q. What criteria did you use?

A. Completion, continuity, credentials, availability, and role uniqueness, along with whether a savings scenario preserved coverage.

Q. Benton's imported total was 84, the highest of the four managers?

A. Yes. The imported values needed calibration. A high historical total did not guarantee retention.

Q. Did the written protocol require documented adjustments?

A. It did. The version log preserved each change and I approved the final variances.

Q. Was protected activity a field?

A. No. The employee-relations flag was for human-resources review, not scoring.

Benton adjustments and known witnesses

Q. Why did Benton's continuity score fall from 22 to 14?

A. I concluded Wynn and Ibarra could accept her transitions. Her availability fell because of the declined short-notice assignment, and uniqueness fell because her quality work could be distributed.

Q. Did you ask Benton for her account before approving those changes?

A. No. We relied on Voss and the source systems.

Q. Was Tessa Wynn known during discovery as a person with comparator information?

A. Yes. Both sides' initial disclosures identified her duties, source metrics, calibration score, continuity exception, and retained assignments. Blue Cedar produced her scorecard. No additional subject for Wynn appeared in the employer's initial disclosure.

Retained-employee exceptions

Q. Why did Wynn gain continuity credit for a May transition when Benton's June matters lost it?

A. I viewed Lantern as relationship sensitive and the others as transferable. That distinction is in the meeting discussion, though not in a client request.

Q. Why did Ibarra gain availability credit despite fewer completed travel days?

A. We needed summer coverage and he volunteered. I treated future availability as more relevant.

Q. Why maximize Keene's uniqueness?

A. Someone had to maintain the automation library. We did not prepare a formal ninety-day transfer estimate.

Q. Were those exceptions applied through one written scale?

A. They were judgments within the criteria, not a mechanical scale.

Final approval and work redistribution

Q. When did you approve Benton's selection?

A. March 21, after finance confirmed the scenario and I initialed Solis's variance audit.

Q. What was redistributed?

A. Northline to Wynn, Oriole to Ibarra, remediation review to Keene, and the quality meeting to Voss.

Q. Was Benton selected for discipline?

A. No. The register says none and eligible for rehire.

Q. Did the company abolish all her functions?

A. No. We eliminated her position and absorbed its functions. That is what I meant by management redundancy.

Explanations given over time

Q. What reason did the March 24 letter give?

A. Payroll savings and redistribution of redundant management responsibilities.

Q. Why did later records mention completion, travel, and client confidence?

A. Those were details informing coverage and the calibrated scores. I do not consider them new reasons.

Q. Identify a contemporaneous client-confidence complaint about Benton.

A. I cannot identify a complaint. I used “client confidence” to refer to continuity risk, not a negative client report.

Q. Did finance tell you to select Benton?

A. No. Finance supplied the target. I chose the operating scenario.

Admissions, limits, and transcript corrections

Pike agreed that he was the final decisionmaker; knew by March that Benton had an internal assignment complaint and an EEOC matter; considered several scenarios that could meet the target; approved three downward Benton adjustments and credits for each retained comparator; and relied on no client complaint or disciplinary record.

He denied allowing protected activity to influence the decision and maintained that coverage, salary, and transferable duties explained the selection.

Pike's errata correct the workbook opening date from February 13 to February 14 and the final approval date from March 20 to March 21. He made no correction to his testimony about notice routing, alternative scenarios, or the absence of discipline and reserved signature under the governing deposition procedure.